



CHAPTER ii

An Act to free Saint John's Chapel Beverley from the act or consequences of the consecration thereof and for other purposes. [23rd May 1950.]

WHEREAS by an indenture dated the sixteenth day of September eighteen hundred and forty-one a piece of land situate and being on the east side of the street called Lairgate in the borough of Beverley in the east riding of the county of York containing by admeasurement in breadth from north to south at the west end thereof adjoining the said street eighty-eight feet and at the east end thereof eighty feet and in depth from east to west on both sides thereof one hundred and twenty feet (being the south-west corner of a close known as Saint Margaret's otherwise Norman's Close) and the building then recently erected thereon and commonly called Saint John's Chapel were conveyed by Jane Walker and James Walker to the Reverend William Robinson Gilby Henry William Hutton William Duesbery Thornton Duesbery Anthony Atkinson and Robert George Boulton and their heirs upon the trusts and for the purposes in the said indenture declared:

And whereas it was thereby agreed and declared that the said land and building should be for ever holden by the said William Robinson Gilby Henry William Hutton William Duesbery Thornton Duesbery Anthony Atkinson and Robert George Boulton their heirs and assigns and the trustees or trustee for the time being of the said indenture upon trust to procure the said land and building to be consecrated to the intent that the same should be for ever thereafter set apart and dedicated to the service of Almighty God as a place of divine worship according to the liturgy and usages of the United Church of England and Ireland as by law established and thereafter to nominate appoint and present to the said chapel the incumbent for the time being

of the late Collegiate Church of Saint John Beverley (being the vicar of Beverley Minster) or the perpetual curate thereof or other such fit and proper person as they should think proper and to permit the pew rents of the said chapel (after deducting therefrom a proportion thereof as in the said indenture provided to form a fund for the maintenance of the said chapel) to be received and taken by the incumbent of the said chapel for his own use and benefit:

And whereas the said land and building were duly consecrated in the year eighteen hundred and forty-one and Saint John's Chapel became and was administered by the vicar of Beverley Minster and his curates as a chapel of ease in the parish of Saint Martin Beverley of which Beverley Minster is the parish church:

And whereas the pew rents above referred to were long since abolished and there is no such fund for the maintenance of the said chapel as was contemplated by the said indenture:

And whereas the use of the said chapel for divine worship ceased on the twenty-second day of September nineteen hundred and thirty-nine the said chapel having become redundant:

And whereas no incumbent has been nominated appointed or presented to the said chapel since the thirtieth day of May nineteen hundred and forty-two:

And whereas the present Trustees or persons having the management or administration of the trusts of the hereinbefore recited indenture are Charles William Witty of 35 Woodlands Beverley incorporated accountant George Edward Whitehead of 2 Saint John's Street Beverley retired schoolmaster and Donald Atkinson of Highfield Queensgate Park Beverley assistant to a managing director:

And whereas it is expedient that the said piece of land and the chapel referred to in the indenture hereinbefore recited should be freed from all restrictions which may affect the same by reason of such consecration:

And whereas it is expedient that the other provisions contained in this Act should be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

Short title

1. This Act may be cited as the Saint John's Chapel Beverley Act 1950.

2. In this Act the expression—

Interpretation.

“ chapel ” means the building known as Saint John's Chapel erected on the land described in the schedule to this Act and the said land ;

“ chapel deed ” means an indenture made the sixteenth day of September eighteen hundred and forty-one between Jane Walker and James Walker of the one part and the Reverend William Robinson Gilby Henry William Hutton William Duesbery Thornton Duesbery Anthony Atkinson and Robert George Boulton of the other part ;

“ Trustees ” means the trustees or trustee or persons or person having the management or administration for the time being of the trusts of the chapel deed.

3. The chapel shall by virtue of this Act be free from the act or consequences of the consecration thereof and from all trusts or uses obligations disabilities and restrictions whatsoever attributable to such consecration heretofore attaching thereto under ecclesiastical law. Chapel freed from act or consequences of consecration &c.

4. All costs charges and expenses preliminary and of and incidental to the preparing applying for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Trustees. Costs of Act.

SCHEDULE

A piece of land situate in the borough of Beverley and being on the east side of a street called Lairgate containing by admeasurement in breadth from north to south at the west end thereof adjoining the street eighty-eight feet and at the east end thereof eighty feet and in depth from east to west on both sides thereof one hundred and twenty feet being the south-west corner of a close originally containing one acre and three roods known by the name of Saint Margaret's otherwise Norman's Close bounded by Saint John's Parsonage House otherwise known as No. 71 Lairgate aforesaid on or towards the north in part by a messuage or dwelling-house and lands belonging to Mrs. Bell Johnson being No. 73 Lairgate aforesaid and in remaining part by property of Messrs. W. & H. Stephenson on or towards the south by property of the corporation of Beverley known as the Champney Garden on or towards the east and by Lairgate aforesaid on or towards the west.

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